

ATHLETICS SPONSORSHIP AGREEMENT

The DEX CAFFEINATED PEPPERMINTS COMPANY LLC ("Brand") thanks _____ ("Signee"), with a principal place of business at _____, with a cash contribution of \$ _____ and an in-kind contribution as outlined below.

1. Sponsorship Rights and Benefits. As an official sponsor, Brand will grant Signee a package of signage, print, electronic and other benefits as detailed in Exhibit A attached hereto.

2. Sponsorship Term. This Agreement shall commence as of _____ and continue through _____. This agreement may be renewed for two successive one-year periods, by mutual agreement of the parties, in writing, at any time prior to the end of the initial term or any renewal period.

3. Sponsorship Fee. In consideration for entering into this Agreement, Brand agrees to pay Signee the sum of \$ 750,000.00 for the initial term and the amount of \$ 500,000.00 for each renewal period. All payments due from Brand shall be in the form of checks made payable to " _____ " and shall be due on or before _____.

4. General Conditions:

A. Licensing Rights:

- i. Grant of Rights. Brand will have the limited, non-exclusive right to use Signee's likeness on a royalty-free basis in promotions, advertising and website identification for the limited purpose of leveraging its sponsorship position. Brand shall place the indicia "SM" or "TM" next to each use of any Mark and will have the exclusive right to use Signee's name and likeness on a royalty-free basis in promotions, advertising and website identification as specified herein.
- ii. License Term. On the date of termination of this Agreement, all rights and privileges granted to Brand and Signee by this limited license shall immediately terminate.
- iii. Goodwill. Brand and Signee recognize the great value of the goodwill associated with each party's intellectual property. Each party recognizes that the other has an interest in maintaining and protecting the image and reputation of its respective intellectual property and that the other party's intellectual property must be used in a manner consistent with the standards established by that party.

B. Morality. By signing, Signee hereby agrees to the following Rules of Conduct:

- i. Signee shall refrain from any/all illicit drug use for the duration of the Agreement.
- ii. Signee shall refrain from all public or private fraternization for the duration of the Agreement.
 - a. ADDENDUM: Unless specifically approved in writing by Signee's respective managers and public relations teams.
- iii. Signee shall not produce, endorse or be in any way connected to lewd or illicit media, including social media, nudity or foul language.
- iv. Any violation of Rules of Conduct shall render the Agreement null and void. The agreed-upon terms of termination of collaboration shall include:
 - a. Termination of all compensation.
 - b. Reimbursement of all advance funds issued in full.
 - c. Issuance of public apology within 30 days of reported violation.

C. Liability. In recognition of the relative risks and benefits of the Sponsorship Agreement to both the Brand and the Signee, the risks have been allocated such that the Signee agrees, to the fullest extent permitted by law, to limit the liability of the Brand's officers, directors, partners, employees, shareholders, owners and subconsultants for any and all claims, losses, costs, damages of any nature whatsoever, whether arising from breach of contract, negligence or other common law or statutory theory of recovery, or claims expenses from any cause or causes, including attorney's fees and costs and expert witness fees and costs, so that the total aggregate liability of the Signee shall not exceed \$ _____, or the Signee's total fee for services rendered on the Project, whichever amount is greater.

D. Non-Compete. For the entire duration of this agreement, and for a period of FIVE YEARS from the date which the Brand's relationship with the Signee has been terminated for any reason, the Signee will not work as a spokesperson or representative or engage in any other capacity with a competing company as listed in Exhibit C.

E. Confidentiality. All Confidential Information provided by the Brand under this Agreement is provided in good faith "AS IS" and without any warranty or representation, express, implied or otherwise, regarding its accuracy or performance. Neither Brand nor any of its Representatives shall have any liability to Signee, its Representatives or any other person of any nature or kind whatsoever, directly or indirectly, resulting from or arising out of the furnishing to Signee or the use made by Signee or its Representatives of any of Brand's Confidential Information.

F. Recognition Rights. All copy and graphics proposed for display by Brand for the recognition referred to in Exhibit A, attached, are subject to approval by the Signee. The Signee shall have the right to decline to display any copy or graphics which is in violation of any statute, regulation or ordinance, or which the Signee reasonably considers to be misleading, offensive or in violation of any Signee contract obligation. The Signee shall not display any logo, sign, banner or other visual display nor shall it print, publish or distribute any written or visual material from Brand which contains a comparative or qualitative description of Brand's product, price information or any other indications of savings or value about Brand's product, any message that otherwise endorses Brand's product or induces one to purchase or use Brand's product or any message that causes Brand's payments to not be treated as "qualified sponsorship payments" as that term is defined in Section 513(i) of the Internal Revenue Code and related regulations.

5. Indemnity. Brand shall indemnify and hold harmless the Signee from and against any and all damages, losses and claims, counterclaims, suits, demands, actions, causes of action, setoffs, liens, attachments, debts, judgments, liabilities or expenses including, without limitation, attorney's fees and legal costs by reason of any claim, suit or judgment arising or alleged to arise from or relating to: (1) this Agreement; (2) the negligent acts or willful misconduct of Brand, its employees, agents or contractors; or (3) any liability for fraud, misrepresentation or copyright or trademark infringement in connection with Brand's name and/or logo displayed pursuant hereto.

6. Governing Law. This Agreement shall be construed and governed in accordance with the laws of the State of Delaware and any dispute arising hereunder shall be resolved in a court of competent jurisdiction in the State of Delaware.

7. Force Majeure. If either party is unable to perform any obligation hereunder by reason of any event beyond such party's reasonable control, including but not limited to fire, flood, epidemic, earthquake, explosion, act of God or public enemy, riot or civil disturbance, strike, lockout or labor dispute, war (declared or undeclared), terrorist threat or activity or any federal, state or local government law, order or regulation, order of any court or jurisdiction or other cause not reasonably within either party's control (each a "Force Majeure" event or occurrence), such party shall be excused from performance and may terminate this Agreement upon written notice to the other party.

8. Entire Agreement. This Agreement supersedes all prior negotiations, understandings and agreements between the parties hereto and constitutes the final and complete understanding of the parties regarding the subject matter hereof, and both parties acknowledge and agree that neither party has relied on any representations or promises in connection with this Agreement not contained herein.

AGREED: _____

Name _____ Title _____ Date _____

Brand Representative

AGREED: _____

Name _____ Title _____ Date _____

Signee